

HOUSE No. 1551

The Commonwealth of Massachusetts

PRESENTED BY:

Paul McMurtry

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the Affordable Homes Act.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>1/16/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>1/21/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>4/3/2025</i>
<i>Steven Ultrino</i>	<i>33rd Middlesex</i>	<i>4/9/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>4/9/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>4/10/2025</i>

HOUSE No. 1551

By Representative McMurtry of Dedham, a petition (accompanied by bill, House, No. 1551) of Paul McMurtry and Michael O. Moore relative to the renovation and repair of housing authority properties. Housing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the Affordable Homes Act.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1. Chapter 121B of the General Laws is hereby amended by adding the following
2 section:

3 Renovation and repair of housing authority properties funded with capital pursuant to
4 item 7004-0074 from chapter 150 of the acts of 2024; solicitation of bids; evaluation of bids;
5 contract award; payment and performance bonds

6 Section 61. Notwithstanding any general or special law to the contrary, any housing
7 authority that procures a construction contract for the renovation, or repair of housing authority
8 property using funds pursuant to item 7004-0074 from chapter 150 of the acts of 2024 shall be
9 subject to the provisions of this section and all prevailing wage requirements set forth in sections
10 26 to 27F, inclusive, and section 29 of chapter 149 of the General Laws.

11 Every contract for the renovation or repair of housing authority property using funds
12 pursuant to item 7004-0074 from chapter 150 of the acts of 2024 that is estimated by the

13 awarding housing authority to be less than \$10,000 shall be awarded using sound business
14 practices as defined in section two of chapter 30B. the awarding housing authority shall make
15 and keep a record of each procurement that, at a minimum, shall include the name and address of
16 the person from whom the services were procured. An awarding housing authority that utilizes a
17 vendor on a statewide contract procured through the operational services division, or a blanket
18 contract procured by the awarding housing authority pursuant to section 39M of chapter 30, shall
19 be deemed to have obtained the contract through sound business practices.

20 Every contract for the renovation or repair of housing authority property using funds
21 pursuant to item 7004-0074 from chapter 150 of the acts of 2024, that is estimated by the
22 awarding housing authority to be more than \$10,000 may be awarded to the responsible and
23 eligible bidder offering to perform the contract at the lowest price or through the solicitation of
24 competitive sealed proposals through the issuance of a request for proposals. There shall be no
25 requirements regarding sub-bids for contracts entered into pursuant to this section.

26 Where the housing authority chooses to award the contract to the lowest responsible
27 bidder, the awarding housing authority shall make public notification of the contract and shall
28 seek written responses from no fewer than 3 persons who customarily perform such work. Every
29 public notification shall state that every response shall be accompanied by a copy of an
30 appropriate certificate of eligibility issued by the commissioner pursuant to section 44D of
31 chapter 149, insofar as those requirements are applicable to general bids only. For purposes of
32 this subsection, the term "public notification" shall include, but need not be limited to, posting, at
33 least 2 weeks before the time specified in the notification for the receipt of responses, the
34 contract and scope-of-work statement: (1) on the website of the awarding housing authority, (2)
35 in the central register published pursuant to section 20A

of chapter 9 and (3) in a conspicuous place in or near the primary office of the awarding housing authority. The solicitation shall include a scope-of-work statement that defines the work to be performed and provides potential responders with sufficient information regarding the objectives and requirements of the awarding housing authority and the time period within which the work shall be completed. The awarding housing authority shall record the names and addresses of all persons from whom written responses were sought, the names of the persons submitting written responses and the date and amount of each written response.

Where the housing authority solicits competitive sealed proposals through the issuance of a request for proposals, the request shall include:

(1) the time and date by which proposals shall be received, and the method by which the proposals shall be delivered and the maximum time for proposal acceptance by the housing authority;

(2) the scope of work and all criteria that shall be utilized in evaluating proposals;

(3) all contractual terms and conditions applicable to the procurement, provided that the contract may incorporate by reference a plan submitted by the selected offeror for renovating or repairing housing authority property;

(4) a notice stating that every proposal shall be accompanied by a copy of an appropriate certificate of eligibility issued by the commissioner pursuant to section 44D of chapter 149, insofar as those requirements are applicable to general bids only, together with an update statement; and

(5) a notice stating that every proposal shall be accompanied by a certification that the offeror is able to furnish labor that can work in concert with all other elements of labor employed or to be employed at the housing authority property.

All requests for proposals submitted under this section shall be in accordance with any and all executive office of housing and livable communities requirements. The request for proposals may incorporate documents by reference so long as the request for proposals specifies where prospective offerors may obtain such documents. The request for proposals shall provide for the separate submission of a price proposal and shall indicate when and how an offeror shall submit the price proposal. The housing authority shall make copies, including electronic copies, of the request for proposals available to all persons on an equal basis.

The request for proposals for the renovation or repair of a housing authority property shall be published in accordance with the provisions of section 44J of chapter 149, insofar as those requirements are applicable to general bids only.

The housing authority shall not open the proposals publicly but shall open them in the presence of at least one witness at the time specified in the request for proposals. Notwithstanding section 7 of chapter 4, until the completion of the evaluation or until the time for acceptance specified in the request for proposals, whichever occurs earlier, the

contents of the proposals shall remain confidential and shall not be disclosed to competing offerors. At the opening of proposals, the housing authority shall prepare a register of proposals. The register of proposals shall be open for public inspection. The housing authority shall open the price proposals at a later time and shall open the price proposals in a manner that

ensures that the content of the price proposals is not disclosed to the individuals evaluating the proposals on the basis of criteria other than price.

The housing authority shall designate the individuals responsible for the evaluation of the proposals on the basis of criteria other than price. The designated individuals shall prepare their evaluations based solely on the criteria set forth in the request for proposals. Such criteria shall include all standards by which acceptability shall be determined as to quality, workmanship, results of inspections and tests, and suitability for a particular purpose, and shall also include all other measures that shall be utilized. The evaluations shall specify in writing:

(1) for each evaluation criterion, a rating of each proposal as highly advantageous, advantageous, not advantageous or unacceptable, and the reasons for such rating;

(2) a composite rating for each proposal and the reasons for such rating; and

(3) recommendations for revisions, if any, to each proposed plan for the renovation or repair of the housing authority property which shall be obtained by negotiation prior to awarding the contract to the offeror of the proposal.

The housing authority shall unconditionally accept a proposal except as provided by this paragraph. An offeror may correct, modify or withdraw a proposal by written notice received in the office designated in the request for proposals prior to the time and date set for the opening of proposals. After such opening, an offeror may not change the price or any other provisions of the proposal in a manner prejudicial to the interests of the housing authority or fair competition. The housing authority shall waive minor informalities or allow the offeror to correct them, subject to approval from the executive office of housing and livable communities. If a mistake and the intended offer are clearly evident on the face of the document, the housing authority shall correct

the mistake to reflect the intended correct offer and so notify the offeror in writing, and the offeror may not withdraw the offer. The housing authority may permit an offeror to withdraw an offer if a mistake is clearly evident on the face of the document, but the intended correct offer is not similarly evident.

Taking into consideration price and the evaluation criteria set forth in the request for proposals, the housing authority shall determine the most advantageous proposal from a responsible, responsive and eligible offeror. If a responsible, responsive and eligible offeror submits the lowest price and has received a composite rating of highly advantageous on the basis of criteria other than price, then the housing authority shall determine that offeror's proposal to be the most advantageous proposal. If the offeror who submits the lowest price has not received a composite rating of highly advantageous on the basis of criteria other than price, then the Housing authority may, but shall not be required to, determine that the lowest price proposal from among those proposals that have received a composite rating of

highly advantageous on the basis of criteria other than price, is the most advantageous proposal. The housing authority may condition an award on successful negotiation of any revisions recommended in the evaluation and shall explain in writing the reasons for omitting any such revisions from the contract. The housing authority shall award the contract by written notice to the selected offeror within the time for acceptance specified in the request for proposals. The parties may extend the time for acceptance by mutual agreement.

If the housing authority awards the contract to an offeror who did not submit the lowest price, the housing authority shall explain the reasons for the award in writing, specifying in reasonable detail the basis for determining that the anticipated performance of the selected

121 offeror justifies the additional cost, and the housing authority shall maintain such explanation in
122 its files for at least six years from the date of final payment under the contract.

123 Every contract for renovation and repair of public housing property using funds pursuant
124 to item 7004-0074 from chapter 150 of the acts of 2024 shall be subject to the applicable bond
125 requirements set forth under section 44B of chapter 149 insofar as those requirements are
126 applicable to general bids only, and section 39M of chapter 30.

127 The provisions of this section shall not apply to the extent that they prevent the approval
128 of such specifications by any contributing federal agency.